

[23 & 24 GEO. 5.] *Cancer Hospital (Free)* [Ch. xxxvi.]
Act, 1933.



CHAPTER xxxvi.

An Act to enable the Cancer Hospital (Free) to make and accept charges for the accommodation and treatment of certain patients and for other purposes. A.D. 1933.
[18th July 1933.]

WHEREAS the Cancer Hospital (now known as "the Cancer Hospital (Free)") was founded in the year one thousand eight hundred and fifty-one for the treatment of the poor afflicted with cancer tumour or allied diseases and is the only institution in London devoted exclusively to the treatment of these diseases :

And whereas no restriction is placed upon the admission of out-patients or in-patients who are admitted to the Hospital without letters of recommendation and the Cancer Hospital is in this respect different from the majority of special hospitals in London in that they undertake to treat persons suffering from the before-mentioned diseases without any letters of recommendation and free of charge :

And whereas it has been found that the provision of certain beds for persons suffering from the before-mentioned diseases who may be able to afford some moderate weekly contribution towards the cost of their treatment and care and who are willing to pay specified charges for the special accommodation they need but are unable to afford the cost of treatment in a private nursing home would be in the public interest and that it is expedient to confer upon the Cancer Hospital (Free) the powers hereinafter contained :

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— And whereas the Cancer Hospital (Free) was incorporated by royal charter in the year one thousand nine hundred and ten by the name of the Cancer Hospital (Free) and certain powers were conferred upon that Hospital and the constitution of the Hospital was prescribed with powers to make byelaws rules and regulations for the government of the Hospital:

And whereas in the year one thousand nine hundred and twenty-nine and in every subsequent year appeals have been made to the public for subscriptions to the funds of the Hospital and in such appeals it has been specified that the Hospital intended to provide separate accommodation for paying patients and the result of such appeals has been to bring in to the funds of the Hospital a large number of subscriptions:

And whereas a new building was in the years one thousand nine hundred and thirty and one thousand nine hundred and thirty-one erected and equipped at a cost of about £140,000 and such new building provides accommodation in every way up to date for radiological treatment available to all patients of the Hospital and for research work with the necessary appliances and such accommodation will in addition to providing accommodation available for paying patients very largely increase the general accommodation of the Hospital:

And whereas in the year one thousand nine hundred and thirty-one the Cancer Hospital (Free) applied to the King's most Excellent Majesty in Council for a supplemental charter giving them further powers but the Hospital were advised by His Majesty's Privy Council that the granting of such supplemental charter would be inconsistent with the objects of the foundation and that for this reason their lordships were unable to make a favourable recommendation to His Majesty in Council upon the petition but that it was open to the Hospital to promote a private Bill to carry out the objects of this Act:

And whereas it is doubtful whether the Cancer Hospital (Free) has power to utilise any beds in the Hospital or in the new building for the accommodation of paying patients:

And whereas it is expedient in the public interest to confer upon the Cancer Hospital (Free) the power to

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accept paying patients and to accommodate them in certain beds of the buildings belonging to the Hospital: A.D. 1933.
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And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

1. This Act may be cited as the Cancer Hospital (Free) Act 1933. Short title.

2. In and for the purposes of this Act—

Interpre-
tation.

“The Charity Commissioners” means the Board of Charity Commissioners for England and Wales;

“The Hospital” means the president and governors for the time being of the Cancer Hospital (Free) incorporated by royal charter dated thirty-first May one thousand nine hundred and ten;

“The new building” means the buildings erected by the Hospital in the years one thousand nine hundred and thirty and one thousand nine hundred and thirty-one and includes all subsidiary buildings erected by the Hospital.

3.—(1) Notwithstanding the trusts express or implied upon which the property and funds of the Hospital in general and the new building in particular are held the Hospital may maintain as part of the Cancer Hospital (Free) and in the new building such parts of the new building and such and so many beds therein and for such period as the Charity Commissioners may from time to time by order authorise for the reception and treatment of patients who are able and willing to pay such maximum charges as shall be specified by the Charity Commissioners in such order. Accommo-
dation for
and
charges to
paying
patients.

(2) The Hospital may charge such patients fees not exceeding such maximum fees as may be specified in any

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A.D. 1933. order for the time being in force made by the Charity Commissioners in pursuance of the powers conferred by this section.

Costs of
Act.

4. The costs charges and expenses preliminary to and of and incidental to the preparing for obtaining and passing of this Act shall be paid by the Hospital out of their general funds.

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